IN THE DISTRICT COURT OF APPEAL

FIFTH DISTRICT, STATE OF FLORIDA

Case No. 5D2025-1050

AMELIA ISLAND SANCTUARY PROPERTY OWNERS ASSOCIATION, INC.,
Appellant,

v.

NASSAU COUNTY, FLORIDA, and RIVERSTONE PROPERTIES, LLC,
Appellees.

L.T. Case No.: 23-CA-384

APPELLANT AMELIA ISLAND SANCTUARY PROPERTY OWNERS ASSOCIATION, INC.'S MOTION FOR ATTORNEYS' FEES

Appellant, Amelia Island Sanctuary Property Owners Association, Inc., ("Appellant"), by and through its undersigned counsel and pursuant to Rule 9.400(b), Florida Rule of Appellate Procedure, and Section 163.3215(8)(c), Florida Statutes, hereby requests that the Court award Appellant its attorneys' fees incurred in this appeal, and as grounds therefore states the following:

1. Appellant filed a three-count complaint in the underlying action seeking to invalidate the alleged settlement agreement entered into by Appellees, Nassau County, Florida, and Riverstone Properties, LLC, pursuant to the Bert J. Harris, Jr., Private Property Rights Protection Act, Section 70.001, Florida Statutes, ("Settlement Agreement").

2. Appellants asserted in Count III that the Settlement Agreement is a "development order" that is inconsistent with Nassau County's comprehensive plan and that it is subject to challenge pursuant to Section 163.3215(3), Florida Statutes. R. 218-80.

3. On March 13, 2025, the trial court entered an order granting Nassau County's motion for summary judgment and final judgment in favor of Nassau County.

4. On March 26, 2025, the trial court entered an order granting Riverstone's motion for summary judgment and final judgment in favor of Riverstone.

5. Count III was the sole remaining claim before the trial court when it entered summary judgment in favor of Riverstone and Nassau County, and it is the sole claim at issue in this appeal.

6. Section 163.3215(8)(c), Florida Statutes provides: "The prevailing party in a challenge to a development order filed under subsection (3) is entitled to recover reasonable attorney fees and costs incurred in challenging or defending the order, including reasonable appellate attorney fees and costs." § 163.3215(8)(c), Fla. Stat.

7. Appellant has incurred additional attorneys' fees to bring this appeal and is entitled to recover these additional fees pursuant to Section 163.3215(8)(c), Fla. Stat.

WHEREFORE, Appellant, Amelia Island Sanctuary Owners Association, Inc., respectfully requests that this Court enter an Order determining that it is entitled to an award of all reasonable attorneys' fees and costs in connection with this appeal, remanding the issue to the lower court for a determination of the amount of said fees and costs, and for entry of an Order awarding those fees and costs to Appellant.

Respectfully submitted this 4th day of November 2025.

/s/ Arthur I. Jacobs
Arthur I. Jacobs, Esq.
Fla. Bar No.: 108249
JACOBS SCHOLZ & WYLER, LLC
961687 Gateway Blvd., Suite 201-I
Fernandina Beach, Florida 32034
(904) 261-3693
(904) 261-7879 Fax
filings@jswflorida.com
buddy@jswflorida.com

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 4th day of November 2025, a true and correct copy of the foregoing was filed electronically using the Florida Courts E-Filing Portal, and has been furnished by electronic transmission, to:

Jay J. Bartlett, Esq.
jayb@blhtlaw.com
Jeffrey L. Hinds, Esq.
jeffreyh@blhtlaw.com
kathrynd@blhtlaw.com
100 North Tampa Street, Suite 2050
Tampa, FL 33602
Attorneys for Appellee Nassau County, Florida

Fred D. Franklin, Jr., Esq.
ffranklin@rtlaw.com
Cristine M. Russell, Esq.
crussell@rtlaw.com
jstacy@rtlaw.com
Rogers Towers, P.A., Suite 1500, Jacksonville, FL 32207
Attorneys for Appellee Riverstone Properties, LLC

And served by E-Mail to:
Scott S. Gallagher, Esq.
sgallagher@sgrlaw.com
Cassandra R. Daum, Esq.
cdaum@sgrlaw.com
asalane@sgrlaw.com
mhowell@sgrlaw.com
50 N. Laura Street, Suite 2600, Jacksonville, FL 32202
Attorneys for Amelia Island Tree Conservancy, Inc.

Creighton Hoffman
corkyhoffman@yahoo.com
8360 Sanctuary Lane, Fernandina Beach, FL 32034
Citizens Against Runaway Development, Inc.

/s/ Arthur I. Jacobs
Arthur I. Jacobs, Esq.
Fla. Bar No.: 108249